

TENTATIVE RULINGS

FOR: July 29, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. 3 Zoom

Join by Video

<https://www.zoomgov.com/j/1605557082?pwd=2LHT804qHaQdoqbfaaG1Rzswp9uowO.1>

Department 3 will not be permitting remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** Booth v. St. Helena Hospital will be heard in Dept. 3
All other matters originally set in Dept. B will be heard in Dept. A****

CIVIL CALENDAR – Hon. Joseph J. Solga, Dept. 3 (Criminal Courts Bldg.) at 8:30 a.m.

Richard Booth v. St Helena Hospital et al

16CV000693

ORDER TO SHOW CASE RE: COURT’S JULY 22, 2026, ORDER

TENTATIVE RULING: The Court’s February 27, 2026, Order denying Plaintiff Richard Booth’s Motion to Set Aside the Dismissal Order is hereby SET ASIDE and VACATED

in its entirety. The Court will sign the Proposed Order Granting Defendants St. Helena Hospital and Adventist Health System/West's Motion to Dismiss Plaintiff's Complaint lodged with the Court on or around June 15, 2026.

On March 25, 2025, Defendants St. Helena Hospital and Adventist Health moved, pursuant to Code of Civil Procedure section 583.310, to dismiss the action for failure to bring it to trial within five years. The matter originally came on for hearing on April 25, 2025, and was continued by Napa Superior Court, at Plaintiff Richard Booth's request, to May 1, 2025. By Minute Order of May 1, 2025, the Court ordered the case dismissed for failure to prosecute. The Court also ordered Counsel for Defendants "to prepare an Order After Hearing." There is, however, no indication in Napa Superior Court's case file that a proposed order after hearing was timely submitted, and no signed order of dismissal has, to date, been filed.

On February 27, 2026, Plaintiff Richard Booth's Motion to Set Aside Dismissal Order as Void Due to Stay Pending Arbitration came on regularly for hearing. No party requested oral argument, pursuant to Local Rule 2.9. Napa Superior Court therefore adopted its Tentative Ruling making it the order of the court. That order, among other matters, directs "the Clerk not to accept further filings in this action."

On April 27, 2026, Plaintiff Richard Booth filed a Notice of Appeal from the February 27, 2026, Minute Order. On July 21, 2026, the Court of Appeal for the First Appellate District, Division Three, issued an Alternative Writ of Mandate directed to this Court. The first alternative set forth therein would permit this Court to comply by: (1) setting aside and vacating the February 27, 2026, order denying Plaintiff Richard Booth's motion to set aside the dismissal order and ordering the Clerk to not accept further filings from Mr. Booth; and (2) entering a signed dismissal order consistent with the May 1, 2025, Minute Order of dismissal.

"[I]f a trial court is considering changing an interim order in response to an alternative writ, it must give the respective parties notice and an opportunity to be heard." (*Brown, Winfield & Canzoneri, Inc. v. Super. Ct.* (2010) 47 Cal.4th 1233, 1250, fn. 10.)

By Order of July 22, 2026, the Court ordered the parties to appear at this hearing and show cause why the Court should not comply with the Writ of Mandate by: (1) setting aside and vacating the February 27, 2026, order denying Plaintiff Richard Booth's motion to set aside the dismissal order and ordering the Clerk to not accept further filings from Mr. Booth; and (2) entering a signed dismissal order consistent with the May 1, 2025, Minute Order of dismissal. taking the contemplated action described above. The Court invited briefing by the parties.

Having reviewed the parties' briefs and considered the matter, the Court hereby orders as follows.

- (1) The Court's February 27, 2026, Order denying Plaintiff Richard Booth's Motion to Set Aside the Dismissal Order is hereby SET ASIDE and VACATED in its entirety;
- (2) The Court will sign the Proposed Order Granting Defendants St. Helena Hospital and Adventist Health System/West's Motion to Dismiss Plaintiff's Complaint lodged with the Court on or around June 15, 2026.

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Susan Alice Ernst

22PR000230

[1] ACCOUNTING

[2] REVIEW – BIENNIAL

TENTATIVE RULING: This Accounting hearing is ordered dropped from the calendar. On July 16, 2026, Conservator filed a Petition to Approve Second Account and Report and set the matter for hearing on August 19, 2026. The present Accounting hearing is, therefore, redundant. The Review Hearing is CONTINUED to August 19, 2026, at 8:30 a.m. in Dept. A to coincide with the Accounting. The Clerk is directed to send notice to the parties.

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Estate of Catherine Mahoney

24PR000291

FINAL DISTRIBUTION HEARING

TENTATIVE RULING: Based on the Court's review of the status report, the Court determines that continuation of administration is in the best interests of the estate and/or of interested persons. Thus, the Court orders that administration of the estate continue. The matter is CONTINUED to January 29, 2027, at 8:30 a.m. in Dept. B.

The Notice of Hearing does not comply with the requirement of Probate Code section 12201, subdivision (b), in that it does not include the statement: "YOU HAVE THE RIGHT TO PETITION FOR AN ACCOUNT UNDER SECTION 10950 OF THE CALIFORNIA PROBATE CODE."

Executor is to provide code-compliant notice of the continued hearing using Judicial Council Form DE-120 which has been adopted for mandatory use.

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